

24NNCV06453 24NNCV06453

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-16

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Case Number: 24NNCV06453 Hearing Date: September 16, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

NORMAN TAYLOR & ASSOCIATES, A

PROFESSIONAL LAW CORPORATION, a corporation,

Plaintiff,

vs.

HYUNDAI MOTOR AMERICA, a

corporation; GLENDALE HYUNDAI, a business entity, form unknown; and DOES 1
through 40, inclusive,

Defendants.

Case

No.:

24NNCV06453

Hearing

Date:

September
16, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR ATTORNEY FEES

MOVING PARTY: Plaintiff Norman Taylor &
Associates, APC

RESPONDING

PARTY: Defendant Genesis Motor
America erroneously sued as Hyundai Motor America

The Court

considered the moving papers, opposition, and reply filed in connection with the
instant motion.

BACKGROUND

This is a standard
Song-Beverly consumer warranty action.

On December 11, 2024,
Plaintiff Norman Taylor & Associates, APC ("Plaintiff") brought this action
against Defendants Genesis Motor America erroneously sued as Hyundai Motor
America ("Defendant") and Glendale Hyundai (collectively, "Defendants"), alleging
causes of action for (1) violation of the Song-Beverly Act – breach of express
warranty, (2) violation of the Song-Beverly Act – breach of implied warranty,
(3) violation of the Song-Beverly Act – section 1793.2, and (4) negligent
repair. The causes of action arise out of Plaintiff's purchase of a 2023
Genesis G80 AWD 3.5T Sport Prestige (the "Vehicle") for eventual sale to retail
buyers.

On May 5, 2025, the
parties filed notice of settlement of the entire case.

On May 13, 2026,
Plaintiff filed the instant motion for attorneys' fees.

On July 9, 2026,
Defendant filed its opposition.

On September 9, 2026,
Plaintiff filed a reply.

EVIDENTIARY OBJECTIONS

Plaintiff's
Objections to the Declarations of Donna Hooper and Soheyl Tahsildoost:

Overruled:
1-12.

LEGAL STANDARD

Civil Code section 1794, subdivision
(d), permits a prevailing buyer under the Song Beverly Consumer Warranty Act to
recover costs, expenses, and attorneys' fees reasonably incurred in connection
with the commencement and prosecution of the action.

The lodestar method is the primary means of calculating a reasonable
fee award. (Robertson v. Fleetwood Travel Trailers of California, Inc.
(2006) 144 Cal.App.4th 785, 818-819.) The Court begins with the number of hours
reasonably expended multiplied by a reasonable hourly rate and may adjust the
resulting figure as appropriate. The Court retains broad discretion to reduce
excessive, duplicative, or otherwise unreasonable billing. (Wilkerson v.
Sullivan (2002) 99 Cal.App.4th 443, 448; Horsford v. Board of Trustees
of California State University (2005) 132 Cal.App.4th 359, 395.)

DISCUSSION

Plaintiff moves for attorneys' fees,
costs, and expenses in the amount of \$30,358.50.

A. Prevailing
Party

Defendant does not dispute that Plaintiff is the prevailing party. Accordingly, Plaintiff is entitled to recover reasonable attorneys' fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d).

B.

Timeliness

Defendant argues that Plaintiff's motion for attorneys' fees is untimely. This case was dismissed on November 21, 2025, and the notice of dismissal was served on November 24, 2025. The instant motion was not filed until May 13, 2026. Defendant argues that Plaintiff had 60 days from service of the notice of dismissal to file the instant motion, pursuant to California Rules of Court, rule 3.1702, subdivision (b)(1).

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case...." (Cal. Rules of Court, rule 3.1702, subd. (b)(1).) "[A] notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment." (Cal. Rules of Court, rule 8.104, subd. (a)(1).)

Defendant attaches a copy of the Court's November 24, 2025 entry of dismissal and a copy of the electronic service email of the entered request for dismissal served on Defendant reflecting the service date of November 24, 2025. (Hooper Decl., ¶ 14, Exh. D.) Applying the plain language of rule 8.104, the November 24, 2025 service of the entry of dismissal would trigger the deadline for filing a motion for attorneys' fees, requiring the motion for attorneys' fees to be filed by the 60-day deadline prescribed in rule 8.104(a)(1)(B).

Plaintiff's counsel declares
that Plaintiff did not receive notice of entry of dismissal. (Wirtz Decl., ¶
8.) However, the notice of dismissal states that Plaintiff filed the request
for dismissal on November 21, 2025 and that it was entered the same day. The
Court notified counsel of the entry of dismissal on November 24, 2025.

Counsel for Plaintiff served
the notice of dismissal on Defendant on November 24, 2025. Based on these
facts, Plaintiff's motion for attorneys' fees is untimely.

Accordingly, the Court denies
Plaintiff's motion for attorneys' fees.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff Norman Taylor &
Associates, APC's motion for attorneys' fees.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 16, 2026

Sarah
J. Heidel

Judge
of the Superior Court